

**TENTATIVE RULINGS
DEPARTMENT C13 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

January 6, 2025

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5213. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
2	2023-01329927 Clayton-Tarvin v. City of Huntington Beach.	Motion for Attorney Fees Petitioner Gina Clayton-Tarvin’s Motion for an Award of Reasonable Attorney’s Fees and Costs is granted in the amount of \$180,260 in attorneys’ fees and \$1,832.50 in costs. The court declines to rule on Respondents’ evidentiary objections because they are not material to the disposition of the motion. Petitioner moves under Government Code section 7923.115, for an award of attorneys’ fees in the lodestar amount of \$278,972.50, enhanced with a 2.0 multiplier to \$557,945; and, for entry of \$1,832.50 in costs, per the costs memorandum filed on 7/17/24 (ROA 125). Respondents do not dispute that Petitioner is the prevailing party for the purpose of an award of reasonable attorneys’ fees and costs under the statute, but they dispute the “reasonableness” of the amount of the attorneys’ fees sought and contend that the lodestar figure should “be adjusted down by 50%” and that the total award should not exceed “\$91,042.82, inclusive of costs.” A court assessing attorney fees begins with a touchstone or lodestar figure, based on the “careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.” (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48; see <i>Bernardi v. County of Monterey</i> (2008) 167 Cal.App.4th 1379, 1393 [applying “lodestar” method to a motion for attorneys’ fees under the CPRA].) “In determining hourly rates, the court must look to the ‘prevailing market rates in the relevant community.’ (Citation.) The rates of comparable attorneys in the forum district are usually used. (Citation.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. (<i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009, internal citations omitted.) It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of Univ. of California</i> (1998) 67 Cal.App.4th 437, 449.) Where, as here, the fee motion is supported with declarations from counsel and billing records to establish the hours of work, the party opposing the motion can either “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were

		unreasonable.” “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 563–564.) After having reviewed the supporting declarations from counsel, including the billing records, and based on the court’s familiarity with the presentation of this case and the actions that were required, the court finds Petitioner is entitled to a reasonable award of \$180,260 in attorneys’ fees. This amount was reached by the findings summarized in the table, below. <table><tr><td></td><td>G. Pleasants</td><td>B. Murdock</td><td>L. Fink</td></tr><tr><td>Hourly Rate</td><td>\$600</td><td>\$600</td><td>\$700</td></tr><tr><td>Time Reasonably Spent</td><td>246.2</td><td>24.6</td><td>25.4</td></tr><tr><td>Total</td><td>\$147,720</td><td>\$14,760</td><td>\$17,780</td></tr></table> The court does not find that an “across-the-board” cut of 50% is appropriate; however, certain “line items” on the billing statements were deducted for inefficiencies, duplication, and the performance of tasks that are considered clerical (for which Petitioner seeks compensation at an attorney rate). Additionally, the court does not find that a multiplier is warranted, here, because applicable factors (such as the contingency nature of the retainer agreement), were already considered when the court set the hourly rates. (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138.) Petitioner is ordered to give notice of the ruling.		G. Pleasants	B. Murdock	L. Fink	Hourly Rate	\$600	\$600	\$700	Time Reasonably Spent	246.2	24.6	25.4	Total	\$147,720	\$14,760	\$17,780
	G. Pleasants	B. Murdock	L. Fink															
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3	2022-01246149 Ferhat v. Cara	Motion to Set Aside/Vacate Default Before the Court is Defendant Peter Nisson’s Motion to vacate the 2/6/23 default entered against him on Plaintiff Abderrahane Ferhat’s First Amended Complaint (FAC). The Proof of Service filed shows that Mr. Nisson was personally served with the FAC on 11/10/22 at 10:20 am. (ROA 37). Default was entered a few months later on 2/6/23. (ROA 59). Defendant does not challenge service of the FAC.																

		Rather, he testifies that he believed that he filed his answer on 2/10/23 and thereafter took no further action as to this lawsuit for over a year and a half. (Nisson Decl., ¶¶7, 8.) The Docket does show that he tried to electronically file an answer on 2/10/23 using LegalConnect. Unfortunately, default had already been entered preventing the filing of the answer. But the Clerk gave notice of the rejection, which specifically indicated that “Answering party has already been defaulted.” (ROA 60). This Motion was not filed until 8/7/24. (ROA 113). Defendant testifies that he “did not learn of the default entered on or about 02/06/2023 until July 9, 2024 when I was informed of the default/continued trial date by Counsel for Co-Defendants Jesse J. Thaler, Esq.” (Nisson Decl., ¶9). First, Defendant appears to argue that the “judgment” is void pursuant to CCP § 473(d). He argues that the Prayer for Relief in the FAC does not give him notice of any amounts. But, there is no judgment entered against him. Defendant has not cited any law for the proposition that the default is “void” for these reasons. The Court will hear argument on this issue. Second, Defendant argues mistake, inadvertence, surprise, or excusable neglect pursuant to CCP § 473(d). A motion for discretionary relief must be filed within 6 months after the clerk's entry of default. The motion is ineffective if filed thereafter, even if it is within 6 months after entry of the default <i>judgment</i> (these are separate procedures). (D.R.S. Trading Co., Inc. v. Barnes (2009) 180 CA4th 815, 820—limitations on motions to reconsider under § 1008 not applicable to motions for relief from default judgment for “mistake, inadvertence, surprise or excusable neglect”.) The Court cannot grant the Motion pursuant to CCP §473(b). The Court will hear from Defendant before issuing a final ruling. This Motion is not opposed. Defendant can meet and confer with Plaintiff’s Counsel to see if a resolution can be reached by stipulation.
4	2024-01403640	1) Demurrer to Complaint 2) Motion to Strike Portions of Complaint

	Feuer v. City of Newport Beach	3) Case Management Conference The Court Will Hear Argument
5	2023-01299440 Hulsey v. Trofimenko MD	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Production 3) Motion to Quash Subpoena 4) Motion to Quash Subpoena NO TENTATIVE WILL ISSUE THE COURT WILL HEAR ARGUMENT
7	2021-01225368 Koustik v. Christiansen	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Further Responses to Form Interrogatories 3) Motion to Compel Further Responses to Form Interrogatories Defendant Holly Christiansen’s motions to compel further responses to her form interrogatories, set three, from Plaintiffs/Cross-Defendants Peggy Koustik, Harry Koustik and Bethlehem No Fault Services, Inc. are denied. Defendant Court previously heard substantively identical motions on 11/18/24. The Court denies the prior motions because the separate statements did not comply with CRC, Rule 3.1345(c), which requires Defendant to provide to the court “all the information necessary to understand each discovery request and all the responses to it that are at issue... so that no person is required to review any other document in order to determine the full request and the full response.” (ROA 286). Subd. (c)(4) states that the separate statement shall include, “[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it,” and (c)(5) states that “[i]f the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth.” (ROA 286).

		The amended motions suffer from the same procedural defects. The Motions are denied.
9	24-01408949 Mehta v. Ford Motor Company	1) Demurrer to Complaint 2) Case Management Conference
10	2023-01324999 Simply Crystal Clean, LLC v. Ital Pizza II, LLC	Motion for Summary Judgment and/or Adjudication Defendants Ital Pizza II, LLC, dba Bottega Angelina, Ital Pizza, Inc., dba Angelina's Pizzeria Napoletana, Spectrum Restaurant Management Group, LLC, Philip Fusco, aka Filippo Fusco, and Shokoufeh Fusco, aka Shokoufeh Amiri (collectively, "Defendants") seek summary adjudication on the three causes of action alleged in the First Amended Complaint ("FAC") filed by Plaintiffs Simply Crystal Clean, LLC and Bitu Safari ("Safari") (collectively, "Plaintiffs"). As an initial matter, Defendants' proof of service for their moving papers and reply did not include the server's email address. (Code Civ. Proc., 1013b, subd. (b)(1).) Plaintiffs served and filed an opposition without objecting to service. Subject to any objections regarding service of Defendants' reply, Defendants' motion for summary adjudication is granted. The Court also notes Defendants' notice of motion seeks summary adjudication on only the third cause of action, but also appears to seek summary adjudication on all three causes of action – the first two causes of action as alleged by Safari and the third cause of action by Plaintiffs. Defendants briefed all three causes of action in the moving papers and Defendants' separate statement repeats the three issues verbatim. Plaintiffs oppose the motion as to all three issues without objecting to service. Accordingly, the Court considers Defendants' motion as to all three issues set forth in the notice of motion and separate statement. Defendants' unopposed request for the Court to take judicial notice of bill analysis is granted. (<i>A.D. Improvements, Inc. v. Department of Transportation</i> (2024) 105 Cal.App.5th 1166; see, <i>St. John's Well Child & Family Center v. Schwarzenegger</i> (2010) 50 Cal.4th 960, 967.)

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*,

	<i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; <i>see Sheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b)(1).) The motion and opposition must be accompanied by a separate statement. (Cal. Rules of Ct., Rule 3.1350, subd. (c)(2), (d), (e)(2), (f), and (g); Code Civ. Proc. §437c, subd. (b).) The separate statement must set forth “plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The format of the separate statement must comply with the requirements set forth in California Rules of Court, Rule 3.1350, subd. (d), (f), and (h). <u>Analysis</u> Issue 1: There are not triable issues of material fact that defendants are liable to plaintiff Bitu Safari under the first cause of action for common counts and Issue 2: There are not triable issues of material fact that defendants are liable to plaintiff Bitu Safari under the second cause of action for breach of contract. Defendants seek summary adjudication against Safari on the first two causes of action. Plaintiffs concede Safari is not bringing the first two causes of action against Defendants. As Defendants point out in their
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		reply, based on the allegations of Plaintiffs' FAC, it is unclear whether Safari is bring these two claims. Because Plaintiffs concede Safari is not bringing the first two causes of action against Defendants, the motion for summary adjudication of these two issues is granted. Issue 3: There are not triable issues of material fact that defendants are liable to plaintiff Simply Crystal Clean, LLC or Bita Safari under the third cause of action for extortion Defendants met their burden to show Plaintiffs were not damaged by the alleged threats. (<i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426 and 428; <i>Tran v. Nguyen</i> (2023) 97 Cal.App.5th 523, 529 and 535; Defendants' Material Fact Numbers 5-15.) Plaintiffs did not raise a triable issue of material fact as to whether Plaintiffs sustained any damages. Although Plaintiffs contend <i>Mendoza vs. Hamzeh</i> (2013) 15 Cal.App.4th 799 held payment is not required if Plaintiffs suffered emotional distress, Plaintiffs submitted no evidence of emotional distress. (See, <i>Tran v. Nguyen</i>, 97 Cal.App.5th at 535; Opposition, 2:26-27; Plaintiffs' Separate Statement, 7:6-10.) The Court notes <i>Mendoza</i> did not discuss whether payment was required to state a cause of action for civil extortion. Rather, the <i>Mendoza</i> Court denied an anti-SLAPP motion on the ground that the defendant's conduct was criminal extortion as a matter of law and, as such, not protected conduct. (<i>Mendoza v. Hamzeh</i> (2013) 215 Cal.App.4th 799, 807.) The Court also notes Defendants quote <i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426-427 for the elements of civil extortion. (Motion, 11:1-6.) However, nowhere does the language Defendants cite appear in <i>Fuhrman</i>. Accordingly, the motion for summary adjudication is granted.
11	2021-01214279 Sun v. Pei	Motion to be Relieved as Counsel of Record The motion of Wesierski & Zurek, LLP, to be relieved as counsel of record for defendant Kang Pei, is granted. Upon the signing of the order, defendant's counsel shall serve the signed order on the client and all parties that have appeared. Wesierski & Zurek, LLP will be relieved as counsel of record for Kang Pei, effective upon the filing of the proof of service of the signed order upon the client and all parties. Wesierski & Zurek, LLP is ordered to give notice of the ruling.

12	2024-01411937 Wells v. Hyundai Motor America	Motion to Compel Arbitration This matter is continued to March 3, 2025 at 1:30 p.m. Additionally, the court sets an OSC re. Venue on Monday, January 27, 2025 at 9:00 a.m. where the court will consider argument as to why per CCP 395(b), the proper venue should be San Joaquin County. The plaintiff is ordered to submit a declaration in this regard. The court orders that a copy of the purchase contract to be attached to the declaration) no later than January 17, 2025.